

		2025 but the parties again agreed to postpone the deposition. Defendant thereafter re-noticed the deposition and, upon receiving Plaintiff's objection, asked for available dates several times. Plaintiff's counsel informed Defendant's counsel that Plaintiff would not be produced pursuant to the pending Motion to Be Relieved as Counsel. Defendant has properly noticed Plaintiff's deposition several times and its repeated requests for alternate available dates have gone ignored. Plaintiff has no valid objection upon which her refusal to appear for deposition is based. Thus, the Motion to Compel Deposition is GRANTED. In light of the September 21, 2026 trial date, Plaintiff is ORDERED to appear for deposition within 30 days upon notice of this order. <i>Moving party to give notice.</i>
102	Allen v. Airbnb, Inc., 23-01360634	Defendant Ali Mojaverian ("Defendant Mojaverian") demurs to all eight causes of action in Plaintiffs Victoria Allen and Jeffrey Allen's ("Plaintiffs") First Amended Complaint ("FAC") and moves to strike various allegations stated on information and belief and related to punitive damages. The demurrer and motion to strike are unopposed. Defendant Mojaverian is alleged to own, operate and manage the "second Subject Airbnb" identified in the FAC. (FAC ¶ 9.) As to Defendant Mojaverian, all of the causes of action are tied to the allegation that "[o]n information and belief, prior to Plaintiffs' placement into and occupancy of the second Subject Airbnb, Defendant MOJAVERIAN knew, was on notice, and/or in the exercise of reasonable care should have known that the second Subject Airbnb had bedbug activity and/or a substantial risk of bedbug infestation, and that reasonable inspection and treatment between occupancies was necessary to protect guests from exposure." (FAC ¶¶ 49, 99, 110, 128, 140, 157, 174, 184, 195.) However, elsewhere in the FAC, Plaintiffs allege that "Plaintiffs' personal items were left inside of the second Subject Airbnb in open mesh net bags while Plaintiffs were absent. Plaintiffs were unaware someone would access the Airbnb property when they were absent. Due to the unprofessional cleaning of Plaintiffs' personal items, the personal items were not sanitized as represented by TOWER 17 PROPERTIES & MANAGEMENT LLC and relied upon by Plaintiffs, causing bedbugs to be transferred from the first Subject Airbnb to the second Subject Airbnb." (FAC ¶ 47.) Accordingly, based on Plaintiffs' own pleading, the bedbugs were transferred to Defendant Mojaverian's property (the second Subject Airbnb) via the delivery of Plaintiffs' personal belongings from the first Subject Airbnb. Due to this

		admission, there was no failure on the part of Defendant Mojaverian to provide premises that were free of bedbugs. Further, the Court construes Plaintiffs' failure to oppose the demurrer and motion to strike as an abandonment of Plaintiffs' claims or an admission that the demurrer and motion to strike have merit. (<i>See Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue"].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 ["failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Having filed no opposition, Plaintiffs have not demonstrated how they could amend the pleading to set forth any claim against Defendant Mojaverian. Accordingly, the demurrer is SUSTAINED as to all eight causes of action without leave to amend. In light of this ruling, Defendant's Motion to Strike is MOOT. The Case Management Conference is vacated. <i>Defendant Mojaverian to give notice and prepare a judgment of dismissal.</i>
103	Iorio vs. Certified HOA Management, Inc., 24-01421374	Defendant, Powerstone Property Management, Inc. ("Powerstone"), demurs to the Complaint of Plaintiffs, Debora Iorio, Thomas Iorio, Janie Iorio, and Thomas Iorio (collectively, "Plaintiffs"), and the first through ninth causes of action therein. Powerstone contends that the first through ninth causes of action fail to state facts sufficient to constitute a cause of action against it and are fatally uncertain. <i>Late Service of Opposing Papers</i> Plaintiffs' counsel provides that the opposition was timely filed on May 1, 2026, but that upon receiving the conformed copy of the opposition on May 4, 2026, they discovered that it had inadvertently not been served on the parties listed on the original proof of service, and promptly took steps to correct the issue by serving Plaintiffs' opposition on all parties listed on the proof of service. (Declaration of Dalton B.